

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3386

By: Clinton of the House

and

Kirt of the Senate

7
8
9 COMMITTEE SUBSTITUTE

10 An Act relating to evictions; amending 12 O.S. 2021,
11 Section 1148.6, which relates to answer by a
12 defendant in forcible entry and detainer actions;
13 creating a defense against eviction when there are
14 minors living in the rental property; requiring proof
15 of residency; requiring mediation prior to litigation
16 if a mediator is present; and providing an effective
17 date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.6, is
20 amended to read as follows:

21 Section 1148.6. A. In all cases in which the defendant wishes
22 to assert title to the land or that the boundaries of the land are
23 in dispute, he or she shall, before the time for the trial of the
24 cause, file a verified answer or an affidavit which contains a full
and specific statement of the facts constituting his or her defense
of title or boundary dispute. If the defendant files such a

1 verified answer or affidavit, the action shall proceed as one in
2 ejectment before the proper division of the district court. If the
3 defendant files an affidavit he or she shall file answer within ten
4 (10) days after the date the affidavit is filed.

5 B. In all cases in which the cause of action is based on an
6 asserted breach of a lease by the defendant, or the termination or
7 expiration of a lease under which the defendant claims an interest
8 in the property in a verified answer or affidavit, the plaintiff may
9 proceed with the forcible entry and detainer action instead of an
10 ejectment action.

11 C. In all cases in which there are minor children in the house,
12 a defendant may assert that there are minor children in the
13 household as a defense against eviction by attaching proof of
14 residency for said minor children including, but not limited to,
15 school records or shot records. Upon establishing proof of
16 residency of said minor, the case shall be assigned to mediation
17 prior to the case being litigated, should a mediator be present that
18 day. Otherwise, a ruling may be issued.

19 D. No answer by the defendant shall be required before the time
20 for trial of the cause.

21 SECTION 2. This act shall become effective November 1, 2026.

22
23 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
24 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.